

ANTI-MONEY LAUNDERING, COUNTER-TERRORISM FINANCING AND COUNTER-PROLIFERATION FINANCING STATEMENT

Version: 1.0

Effective date: 01 March 2025

1. About this Statement

Sunny Forex & Remittance Ltd (“Sunny Forex”, “we”, “us” or “our”) is committed to preventing its products, services, systems, and delivery channels from being used for money laundering, terrorism financing, proliferation financing, fraud, sanctions evasion or other unlawful activities.

This Statement provides a general public description of our approach to Anti-Money Laundering, Counter-Terrorism Financing and Counter-Proliferation Financing, collectively referred to as “AML/CFT/CPF”.

This Statement:

- Is not Sunny Forex’s confidential internal AML/CFT/CPF policy;
- Does not disclose transaction-monitoring thresholds, risk-scoring methodologies, sanctions-matching rules or regulatory-reporting procedures;
- Does not create a guarantee that any customer or transaction will be accepted;
- Does not create additional contractual rights or obligations beyond those arising under applicable law or our Terms of Service; and
- Should be read together with our Terms of Service and Privacy Policy.

2. Company and regulatory information

Sunny Forex & Remittance Ltd is incorporated in Kenya under company registration number **C.138645**.

Sunny Forex is licensed and regulated by the Central Bank of Kenya to conduct money-remittance business under licence number **BSD/14/026/2026**.

Registered office and Head office:

Lavington Avenue Complex, Ground Floor,
James Gichuru Road,
Lavington, Nairobi, Kenya
P. O. Box 34166 – 00100

Website:

www.sunnyremit.com

Compliance contact:

compliance@sunnyremit.com

3. Our compliance commitment

Sunny Forex maintains risk-based policies, procedures, systems and controls designed to:

- Identify and verify customers;
- Identify and verify beneficial owners;
- Establish the purpose and intended nature of transactions and customer relationships;
- Assess customer, product, channel, transaction and geographic risks;
- Conduct politically exposed person and sanctions screening;
- Establish source of funds and source of wealth where appropriate;
- Monitor customer and transaction activity;
- Detect and investigate unusual or potentially suspicious activity;
- Maintain legally required records;
- Report information to competent authorities where required or permitted by law;
- Train employees, agents and relevant representatives; and
- Review and test the effectiveness of our compliance controls.

4. Risk-based approach

We apply a risk-based approach when determining the nature and extent of customer due diligence and transaction controls.

Relevant risk factors may include:

- Customer type;
- Ownership and control structure;
- Occupation or business activity;
- Country of nationality or residence;
- Countries connected to a transaction;
- Product or service used;
- Transaction amount, frequency and pattern;
- Source and purpose of funds;
- Payment or payout channel;
- Non-face-to-face activity;
- Agent, subagent or partner involvement;
- Politically exposed person status;
- Sanctions exposure;
- Adverse information; and
- Previous or expected transaction behaviour.

Higher-risk customers, transactions or relationships may be subject to enhanced due diligence, additional documentation, management approval, increased monitoring, lower limits or service restrictions.

5. Customer identification and verification

Sunny Forex does not knowingly establish anonymous or fictitious customer relationships or process transactions using false, borrowed, incomplete or misleading identities.

Before providing a service, we may request and verify information including:

- Full legal name;
- Date and place of birth;
- Nationality and residence;
- Physical and postal address;
- Telephone number and email address;
- National identity card, passport, foreign national certificate or other acceptable identification;
- Photograph or signature;
- Occupation, employer or business activity;
- Tax identification information;
- Purpose of the transaction;
- Relationship between the sender and beneficiary;
- Source of funds;
- Source of wealth where appropriate;
- Bank or mobile-money information; and
- Other information reasonably required for legal, regulatory or risk-management purposes.

We may verify information using documents, electronic-verification services, reliable independent databases, government records, regulated service providers or other lawful sources.

Providing documents does not automatically mean that verification has been completed or that a transaction will be accepted.

6. Corporate customers and beneficial ownership

For companies, partnerships, trusts, clubs, associations and other legal persons or arrangements, Sunny Forex may identify and verify:

- The legal entity or arrangement;
- Directors, partners, trustees or equivalent officials;
- Authorized representatives and signatories;
- Shareholders or members;
- Persons who ultimately own or control the customer;
- Persons exercising control through other means; and
- Persons on whose behalf a transaction is being conducted.

Customers must disclose when they are acting for another person.

Sunny Forex will not establish or continue a relationship where legally required ownership, control or representation information cannot be satisfactorily established and verified.

7. Politically exposed persons

Sunny Forex screens relevant customers, beneficial owners, representatives, senders and beneficiaries to determine whether they are politically exposed persons, family members or close associates of politically exposed persons.

Politically exposed person status does not by itself indicate criminal or improper activity.

However, additional due diligence, management approval, source-of-funds or source-of-wealth verification and enhanced monitoring may be required in accordance with applicable law and the assessed risk.

Customers must provide accurate politically exposed person declarations and notify Sunny Forex when relevant circumstances change.

8. Sanctions and targeted financial sanctions

Sunny Forex screens relevant persons and transactions against applicable sanctions, terrorism-related designation and targeted financial-sanctions lists.

Screening may apply to:

- Customers;
- Senders;
- Beneficiaries;
- Beneficial owners;
- Directors and shareholders;
- Authorized representatives;
- Agents and business partners;
- Financial institutions;
- Countries; and
- Other persons or entities connected to a transaction.

Where required by law, regulatory direction or a valid designation, Sunny Forex will freeze or restrict applicable funds or other assets without prior notice and within the legally prescribed period.

Sunny Forex may also:

- Request additional information;
- Delay or suspend a transaction;
- Reject or cancel a transaction;

- Restrict access to a service;
- Escalate a matter for compliance review;
- Report to a competent authority; or
- Take any other action required or permitted by law.

Sunny Forex may be prohibited from informing the affected person about particular reports, investigations, restrictions or actions.

9. Source of funds and source of wealth

Sunny Forex may request evidence showing how transaction funds were obtained and, in higher-risk circumstances, how a customer accumulated their wealth.

Supporting evidence may include:

- Salary records;
- Employment confirmation;
- Bank or mobile-money statements;
- Business records;
- Invoices and contracts;
- Sale agreements;
- Tax documents;
- Loan agreements;
- Inheritance documents;
- Investment records;
- Gift or family-support documentation; or
- Other reliable evidence appropriate to the circumstances.

These are examples only. Submission of one document does not automatically satisfy our due-diligence requirements.

Where funds are provided by a parent, spouse, relative, employer, company or other third party, Sunny Forex may:

- Identify and verify the person providing the funds;
- Establish the relationship with the customer;
- Obtain confirmation of the funding arrangement; and
- Request evidence of the third party's underlying source of funds.

A transaction may be delayed or declined where the source of funds or source of wealth cannot be satisfactorily established.

10. Transaction purpose and transfer information

Customers must provide the true and complete purpose of each transaction.

Sunny Forex may request supporting information for purposes such as:

- Family support;

- Education;
- Medical expenses;
- Business payments;
- Purchase of goods or services;
- Travel;
- Investment;
- Property-related payments;
- Donations;
- Loan repayment; or
- Other legitimate purposes.

Domestic and cross-border transfers must contain complete, accurate and traceable sender and beneficiary information.

A transfer containing missing, inconsistent or apparently inaccurate information may be suspended, rejected, returned or subjected to further compliance review.

11. Transaction monitoring

Sunny Forex monitors customer and transaction activity before, during or after processing.

Monitoring may consider:

- Transaction amounts and frequency;
- Customer and beneficiary relationships;
- Transaction patterns;
- Countries and corridors;
- Changes in customer behaviour;
- Activity inconsistent with declared occupation, business or source of income;
- Use of multiple branches, agents, accounts or channels;
- Multiple senders or beneficiaries;
- Attempts to split transactions;
- Repeated failed, reversed or retried transactions;
- Fraud and scam indicators;
- Sanctions risk; and
- Other financial-crime indicators.

Completion of a transaction does not prevent Sunny Forex from reviewing the transaction later or taking legally permitted action.

12. Additional information and incomplete due diligence

Sunny Forex may request additional information or documents at any stage, including after a transaction has been initiated or completed.

Customers must provide complete, accurate, authentic and timely information.

Where legally required identification, verification or beneficial-ownership information cannot be completed, Sunny Forex will not establish the relationship or perform the transaction.

For an existing relationship, Sunny Forex may:

- Restrict or suspend services;
- Decline further transactions;
- End the relationship;
- Preserve relevant records; and
- Take any reporting or other action required or permitted by law.

13. Transaction holds, restrictions and rejection

Sunny Forex may delay, suspend, restrict, reject, cancel or, where legally and operationally possible, request reversal of a transaction where:

- Identification or verification is incomplete;
- Information appears false, inconsistent or misleading;
- Beneficial ownership cannot be established;
- Source or purpose of funds cannot be satisfactorily established;
- The transaction is inconsistent with the customer's profile;
- A sanctions, terrorism-financing or proliferation-financing concern exists;
- Fraud, impersonation or unauthorized activity is suspected;
- Required sender or beneficiary information is missing;
- A legal, regulatory or court requirement applies;
- An applicable transaction or country restriction applies;
- A bank, mobile-money provider or payout partner rejects the transaction; or
- Sunny Forex reasonably determines that it cannot safely or lawfully provide the service.

A customer may not always be informed of the detailed reason where disclosure is prohibited or restricted by law.

Refunds, reversals, exchange-rate differences, charges and processing timelines are governed by our Terms of Service and applicable product terms.

14. Regulatory reporting and cooperation

Sunny Forex may disclose information and submit reports to:

- The Financial Reporting Centre;
- The Central Bank of Kenya;
- Law-enforcement agencies;
- Courts;
- Sanctions authorities;
- Government agencies; and
- Other competent authorities.

Such disclosure will be made where required or permitted by applicable law, a lawful order or a valid regulatory request.

Sunny Forex may be legally prohibited from informing a customer that:

- A suspicious transaction or activity report has been submitted or considered;
- A regulatory request has been received;
- An investigation is in progress; or
- Particular compliance action has been taken.

15. Records and privacy

Sunny Forex retains customer, beneficial-ownership, transaction, communication, screening, due-diligence and compliance records for the period required by law.

Relevant AML and transaction records may be retained for at least seven years and for longer where required by:

- Applicable law;
- A competent authority;
- An investigation;
- Litigation;
- A legal hold; or
- Another lawful retention requirement.

Records may be retained after:

- A transaction has been completed;
- An application has been declined;
- A relationship has ended;
- An account has been closed; or
- Consent has been withdrawn.

Further information about how Sunny Forex processes personal data is contained in our Privacy Policy.

16. Agents, subagents and business partners

Sunny Forex may provide services through approved branches, agents, subagents, banks, mobile-money providers, payout partners and other service providers.

We apply risk-based due diligence and oversight to relevant partners.

Use of an agent, partner or service provider does not remove any compliance responsibility that legally remains with Sunny Forex.

Agents and partners may be required to comply with:

- Customer-identification requirements;

- AML/CFT/CPF requirements;
- Sanctions controls;
- Transaction limits;
- Record-keeping requirements;
- Data-protection requirements;
- Fraud-prevention requirements;
- Training obligations; and
- Sunny Forex operating procedures.

Sunny Forex may restrict, suspend or terminate a relationship with a partner that fails to meet applicable requirements.

17. Prohibited activities

Sunny Forex services must not be used for:

- Money laundering;
- Terrorism financing;
- Proliferation financing;
- Sanctions evasion;
- Fraud or scams;
- Bribery or corruption;
- Human trafficking or exploitation;
- Cybercrime;
- Transactions involving stolen funds;
- Dealing with proceeds of crime;
- Unauthorized use of another person's identity;
- Transactions for undisclosed persons;
- Structuring transactions to avoid controls;
- Use of forged, altered or stolen documents;
- Operating an unauthorized money-transfer business;
- Circumventing country, product or transaction restrictions; or
- Any activity prohibited by applicable law.

18. Customer responsibilities

Customers must:

- Provide complete and accurate information;
- Provide valid and authentic documents;
- Keep customer information current;
- Disclose when acting for another person;
- Provide the true transaction purpose;
- Ensure that funds come from lawful sources;
- Ensure that transactions have lawful purposes;
- Provide accurate sender and beneficiary information;
- Respond to reasonable information requests;
- Protect passwords, verification codes and transaction information;
- Report suspected fraud or unauthorized activity; and

- Comply with applicable laws and Sunny Forex terms.

Customers must not allow another person to use their identification, customer profile, account or transaction access.

19. Mistaken identity and correction requests

A customer who believes that inaccurate identity information or a mistaken identity match has affected a transaction may contact Sunny Forex through the published support or compliance channel.

Sunny Forex may request additional information to review the matter.

Sunny Forex may be legally restricted from disclosing sanctions-screening, suspicious-transaction-reporting, investigation or regulatory information.

20. Changes to this Statement

Sunny Forex may update this Statement to reflect changes in:

- Applicable laws and regulations;
- Regulatory guidance;
- Services and delivery channels;
- Financial-crime risks;
- Compliance controls; or
- Business operations.

The updated Statement will show its version, effective date and last-updated date.

Where appropriate, material changes may also be communicated through other available customer channels.

21. Contact us

Compliance Department

Sunny Forex & Remittance Ltd
Lavington Avenue Complex, Ground Floor,
James Gichuru Road,
Lavington, Nairobi, Kenya
P. O. Box 34166 – 00100

Email: compliance@sunnyremit.com

Telephone: +254 722 590 049

Suspected fraud or scams may be reported through:

Fraud email: fraud@sunnyremit.com

Fraud telephone: +254 722 590 049

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